Deva Nand Jaiswal And Another vs State Of Up And Another on 28 May, 2025

Author: Samit Gopal

Bench: Samit Gopal

HIGH COURT OF JUDICATURE AT ALLAHABAD

Neutral Citation No. - 2025:AHC:91817

Court No. - 64

Case :- APPLICATION U/S 482 No. - 32783 of 2019

Applicant :- Deva Nand Jaiswal And Another

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Manoj Kumar

Counsel for Opposite Party :- G.A.,Yogesh Kumar Tripathi

with

Case :- APPLICATION U/S 482 No. - 37304 of 2019

Applicant :- Radhey Shyam Jaiswal And 3 Others

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Manoj Kumar

Counsel for Opposite Party :- G.A.,Yogesh Kumar Tripathi

Hon'ble Samit Gopal,J.

1. List revised.

2. These two matters are connected together as they arise out of the same case and are of the co-accused.

3. Heard Sri Girish Pandey, Advocate holding brief of Sri Manoj Kumar, learned counsel for the applicants and Sri Jitendra Singh, learned counsel for the State in both the matters and perused the material brought on record. Sri Yogesh Kumar Tripathi, learned counsel for the opposite party no.2 in both the matters is not present even when the matter is taken in the revised list.

4. The Application U/S 482 No. 32783 of 2019 has been filed by the applicants- Deva Nand Jaiswal and Smt. Sheela Devi, with the prayer to allow this application and quash the entire proceeding as well as charge-sheet dated 04.03.2019 & cognizance order dated 28.06.2019 in Case No. 4362 of 2019 (State Vs. Deva Nand Jaiswal and others) arising out of Case Crime No. 131 of 2018, under Sections 147, 323, 504, 506, 498-A, 406 I.P.C. and Section 3/4 Dowry Prohibition Act, Police Station Pipiganj, District Gorakhpur, pending in the Court of Additional Civil Judge (Senior Division), Court No.2, Gorakhpur, with a further prayer that proceeding of the aforesaid case be stayed during the pendency of the present application.

5. The Application U/S 482 No. 37304 of 2019 has been filed by the applicants- Radhey Shyam Jaiswal, Ratnesh @ Jhinak, Abhinesh Jaiswal and Priyanka Jaiswal, with the prayer to allow this application and quash the entire proceeding as well as impugned charge-sheet dated 04.03.2019 & cognizance order dated 28.06.2019 in Case No. 4362 of 2019 (State Vs. Deva Nand Jaiswal and others) arising out of Case Crime No. 131 of 2018, under Sections 147, 323, 504, 506, 498-A, 406 I.P.C. and Section 3/4 Dowry Prohibition Act, Police Station Pipiganj, District Gorakhpur, pending in the Court of Additional Civil Judge (Senior Division), Court No.2, Gorakhpur, with a further prayer that proceeding of the aforesaid case be stayed during the pendency of the present application.

6. The facts of the case are that on 04.07.2018 a first information report was lodged by Smt. Khushboo Jaiswal against Deva Nand Jaiswal, Smt. Sheela Devi, Radhey Shyam Jaiswal, Ratnesh, Golu and Priyanka Jaiswal alleging therein that she was married to Deva Nand Jaiswal as per Hindu rites & customs on 16.06.2016 in which her father had given sufficient dowry, gifts, household articles as per the demand of her in-laws. Since the demand of her in-laws was quite heavy her father had sold of his land and satisfied the same. On 17.02.2016 after vidai she came to her matrimonial house, the accused persons taunted her of bringing less dowry. The accused Deva Nand Jaiswal (husband) Smt. Sheela Devi (mother-in-law), Radhey Shyam Jaiswal (father-in-law), Ratnesh @ Jhinak (devar), Golu (devar) and Priyanka Jaiswal (nand) stated to her to bring Rs. 10 lakhs from her father for being utilized in business. They used to regularly taunt her and torture her and commited violence on her. Her husband had a shop of building material by the name of Jaiswal Building Material and was demanding money for utilizing in the said shop. On 13.12.2016 the accused persons came inside her house and told her to call her father on phone and demand Rs. 10

lakhs only then they would let her live there. She told them that already to satisfy their demand her father had sold off his land and he is not having money and is already under loan on which the accused persons abused her and assaulted her and locked her in the room. Ratnesh @ Jhinak her devar had put a revolver in her mouth and threatened her of murdering her. She was assaulted mercilessly and she became unconscious. She then called her father and told him that her clothes and streedhan were kept by the accused. She was sent with her father only in the clothes she was wearing. The accused persons have tortured her mentally & physically. She was taken to the doctor on 14.12.2016 and given treatment. Her report be lodged and action be taken.

7. The matter was investigated after which a charge-sheet dated 04.03.2019 was submitted against the accused-applicants for offences under Sections 147, 323, 504, 506, 406, 498-A I.P.C. and Section 3/4 Dowry Prohibition Act. The court concerned vide order dated 28.06.2019 took cognizance upon the same and summoned the accused persons.

8. In the meantime, the matter was sent for further investigation and a police report dated 02.06.2019 was sent exonerating Radhey Shyam Jaiswal, Ratnesh @ Jhinak, Golu @ Abhinesh Jaiswal and Priyanka Jaiswal whereas the opinion with regard to accused Deva Nand Jaiswal and Sheela Jaiswal was that they are involved in the case under Sections 323, 504, 506, 406, 498-A I.P.C. and Section 3/4 Dowry Prohibition Act.

9. The matter of co-accused Deva Nand Jaiswal and another came up before another Bench of this Court on 11.09.2019 and was referred to the Mediation & Conciliation Centre of this Court. As per the report dated 17.01.2019 of the Mediation & Conciliation Centre the parties were not willing for mediation and thus the mediation was closed which had failed.

10. The matter of co-accused Radhey Shyam Jaiswal and 3 others also came up before this Court on 17.10.2019 which was also referred to the Mediation & Conciliation Centre of this Court which as per the report dated 17.01.2019 of the Mediation & Conciliation Centre was closed as the parties were not willing for mediation.

11. During investigating Smt. Khushboo, Smt. Maya Devi, Durga Prasad Jaiswal, Rahul Jaiswal and Girjapati Tripathi were interrogated as the alleged witnesses. The said witnesses supported the prosecution case as per the version of the first information report. The present petitions are thus before this Court with the aforesaid prayers.

12. Learned counsel for the applicants submitted that the applicants have been falsely implicated in the present case. It is submitted that the applicant Deva Nand Jaiswal is the husband of the victim whereas the other applicants being Smt. Sheela Devi is the mother-in-law, Radhey Shyam Jaiswal is the father-in-law, Ratnesh @ Jhinak is the devar, Abhinesh Jaiswal @ Golu is the devar and Priyanka Jaiswal is the nand of the first informant / victim. While placing paragraph 5 of the both the petitions it is submitted that the opposite party no.2 has not received any injury. It is submitted that there is no injury report on record to support the said allegation. It is submitted that the implication of the applicants in the matters is on the basis of general & omnibus allegations. It is submitted that the further investigation in the matter has resulted in an opinion of the investigating

agency exonerating 04 co-accused persons who are the applicants in the connected matter. It is submitted that the same would go to show that the prosecution case is false & concocted. Further while placing paragraph 17 of the leading matter and paragraph 22 of the connected matter it is submitted that the applicants have no criminal history. It is submitted that despite the appearance on behalf of the opposite party no.2 no counter affidavit has been filed on her behalf. It is submitted that the petitions be allowed and the prayers as prayed be granted.

13. Per contra, learned counsel for the State opposed the prayer and arguments of learned counsel for the applicants and submitted that the applicants are named in the first information report and there are allegations against them. It is not disputed that no injury report of the opposite party no.2 has been produced and is on record. It is submitted that in so far as the opinion of the Investigating Officer with regard to further investigation is concerned, the same as per the settled law shall also be placed before the court concerned and shall be considered by it at the appropriate stage since prior to the same cognizance on the charge-sheet has been taken and the accused persons have been summoned. It is submitted that once cognizance has been taken, the same cannot be undone by the opinion with regard to further investigation.

14. After hearing the learned counsel for the parties and perusing the records, it is evident that present cases arise out of matrimonial dispute between the opposite party no.2 and the applicant Deva Nand Jaiswal who is her husband. Although in the first information report there is an allegation of the victim being assaulted and having being given medical attention but there is no document on record to support the same. General and omnibus allegations have been levelled against the accused persons.

15. Time and again, the Apex Court has considered and held that there is exaggeration of versions in matrimonial disputes and family members of the husband are involved and made accused in matters and are assigned general and omnibus allegations. For reference, the view as taken in different cases by the Apex Court are as under:-

> A. - Kahkashan Kausar v. State of Bihar : (2022) 6 SCC 599 "Issue involved
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> 10. Having perused the relevant facts and contentions made by the appellants and respondents, in our considered opinion, the foremost issue which requires determination in the instant case is whether allegations made against the appellant in-laws are in the nature of general omnibus allegations and therefore liable to be quashed?
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> 11. Before we delve into greater detail on the nature and content of allegations made, it becomes pertinent to mention that incorporation of Section 498-AIPC was aimed at preventing cruelty committed upon a woman by her husband and her in-laws, by facilitating rapid State intervention. However, it is equally true, that in recent times, matrimonial litigation in the country has also increased significantly and there is a greater disaffection and friction surrounding the institution of marriage, now, more than ever. This has resulted in an increased tendency to employ provisions such as

Section 498-AIPC as instruments to settle personal scores against the husband and his relatives.

12. This Court in its judgment in Rajesh Sharma v. State of U.P. [Rajesh Sharma v. State of U.P., (2018) 10 SCC 472 : (2019) 1 SCC (Cri) 301], has observed : (SCC pp. 478-79, para 14) "14. Section 498-A was inserted in the statute with the laudable object of punishing cruelty at the hands of husband or his relatives against a wife particularly when such cruelty had potential to result in suicide or murder of a woman as mentioned in the Statement of Objects and Reasons of Act 46 of 1983. The expression "cruelty" in Section 498-A covers conduct which may drive the woman to commit suicide or cause grave injury (mental or physical) or danger to life or harassment with a view to coerce her to meet unlawful demand. [Explanation to Section 498-A.] It is a matter of serious concern that large number of cases continue to be filed under Section 498-A alleging harassment of married women. We have already referred to some of the statistics from the Crime Records Bureau. This Court had earlier noticed the fact that most of such complaints are filed in the heat of the moment over trivial issues. Many of such complaints are not bona fide. At the time of filing of the complaint, implications and consequences are not visualised. At times such complaints lead to uncalled for harassment not only to the accused but also to the complainant. Uncalled for arrest may ruin the chances of settlement."

13. Previously, in the landmark judgment of this Court in Arnesh Kumar v. State of Bihar [Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273 : (2014) 3 SCC (Cri) 449], it was also observed : (SCC p. 276, para 4) "4. There is a phenomenal increase in matrimonial disputes in recent years. The institution of marriage is greatly revered in this country. Section 498-AIPC was introduced with avowed object to combat the menace of harassment to a woman at the hands of her husband and his relatives. The fact that Section 498-AIPC is a cognizable and non-bailable offence has lent it a dubious place of pride amongst the provisions that are used as weapons rather than shield by disgruntled wives. The simplest way to harass is to get the husband and his relatives arrested under this provision. In quite a number of cases, bedridden grandfathers and grandmothers of the husbands, their sisters living abroad for decades are arrested."

14. Further in Preeti Gupta v. State of Jharkhand [Preeti Gupta v. State of Jharkhand, (2010) 7 SCC 667 : (2010) 3 SCC (Cri) 473], it has also been observed : (SCC pp. 676-77, paras 32-36) "32. It is a matter of common experience that most of these complaints under Section 498-A IPC are filed in the heat of the moment over trivial issues without proper deliberations. We come across a large number of such complaints which are not even bona fide and are filed with oblique motive. At the same time, rapid increase in the number of genuine cases of dowry harassment is also a matter of serious concern.

33. The learned members of the Bar have enormous social responsibility and obligation to ensure that the social fibre of family life is not ruined or demolished. They must ensure that exaggerated versions of small incidents should not be reflected in the criminal complaints. Majority of the complaints are filed either on their advice or with their concurrence. The learned members of the Bar who belong to a noble profession must maintain its noble traditions and should treat every complaint under Section 498-A as a basic human problem and must make serious endeavour to help the parties in arriving at an amicable resolution of that human problem. They must discharge their duties to the best of their abilities to ensure that social fibre, peace and tranquillity of the society remains intact. The members of the Bar should also ensure that one complaint should not lead to multiple cases.

34. Unfortunately, at the time of filing of the complaint the implications and consequences are not properly visualised by the complainant that such complaint can lead to insurmountable harassment, agony and pain to the complainant, accused and his close relations.

35. The ultimate object of justice is to find out the truth and punish the guilty and protect the innocent. To find out the truth is a Herculean task in majority of these complaints. The tendency of implicating the husband and all his immediate relations is also not uncommon. At times, even after the conclusion of the criminal trial, it is difficult to ascertain the real truth. The courts have to be extremely careful and cautious in dealing with these complaints and must take pragmatic realities into consideration while dealing with matrimonial cases. The allegations of harassment of husband's close relations who had been living in different cities and never visited or rarely visited the place where the complainant resided would have an entirely different complexion. The allegations of the complaint are required to be scrutinised with great care and circumspection.

36. Experience reveals that long and protracted criminal trials lead to rancour, acrimony and bitterness in the relationship amongst the parties. It is also a matter of common knowledge that in cases filed by the complainant if the husband or the husband's relations had to remain in jail even for a few days, it would ruin the chances of an amicable settlement altogether. The process of suffering is extremely long and painful."

15. In Geeta Mehrotra v. State of U.P. [Geeta Mehrotra v. State of U.P., (2012) 10 SCC 741 : (2013) 1 SCC (Civ) 212 : (2013) 1 SCC (Cri) 120] it was observed : (SCC p. 749, para 21) "21. It would be relevant at this stage to take note of an apt observation of this Court recorded in G.V. Rao v. L.H.V. Prasad [G.V. Rao v. L.H.V. Prasad, (2000) 3 SCC 693 : 2000 SCC (Cri) 733] wherein also in a matrimonial dispute, this Court had held that the High Court should have quashed the complaint arising out of a matrimonial dispute wherein all family members had been roped into the matrimonial litigation which was quashed and set aside. Their Lordships observed

therein with which we entirely agree that : (SCC p. 698, para 12) '12. ... There has been an outburst of matrimonial dispute in recent times. Marriage is a sacred ceremony, the main purpose of which is to enable the young couple to settle down in life and live peacefully. But little matrimonial skirmishes suddenly erupt which often assume serious proportions resulting in commission of heinous crimes in which elders of the family are also involved with the result that those who could have counselled and brought about rapprochement are rendered helpless on their being arrayed as accused in the criminal case. There are many other reasons which need not be mentioned here for not encouraging matrimonial litigation so that the parties may ponder over their defaults and terminate their disputes amicably by mutual agreement instead of fighting it out in a court of law where it takes years and years to conclude and in that process the parties lose their "young" days in chasing their cases in different courts.' The view taken by the Judges in this matter was that the courts would not encourage such disputes."

16. Recently, in K. Subba Rao v. State of Telangana [K. Subba Rao v. State of Telangana, (2018) 14 SCC 452 : (2019) 1 SCC (Cri) 605], it was also observed that : (SCC p. 454, para 6) "6. ... The courts should be careful in proceeding against the distant relatives in crimes pertaining to matrimonial disputes and dowry deaths. The relatives of the husband should not be roped in on the basis of omnibus allegations unless specific instances of their involvement in the crime are made out."

17. The abovementioned decisions clearly demonstrate that this Court has at numerous instances expressed concern over the misuse of Section 498-A IPC and the increased tendency of implicating relatives of the husband in matrimonial disputes, without analysing the long-term ramifications of a trial on the complainant as well as the accused. It is further manifest from the said judgments that false implication by way of general omnibus allegations made in the course of matrimonial dispute, if left unchecked would result in misuse of the process of law. Therefore, this Court by way of its judgments has warned the courts from proceeding against the relatives and in-laws of the husband when no prima facie case is made out against them."

B. - Payal Sharma v. State of Punjab and another : 2024 SCC OnLine SC 3473 "9. In the decision in Preeti Gupta v. State of Jharkhand: (2010) 7 SCC 667, this Court observed that it is a matter of common knowledge that in matrimonial disputes exaggerated versions of the incident are reflected in a large number of complaints and the tendency of over implication is also reflected in a large number of cases. The criminal trials lead to immense sufferings for all concerned. Even ultimate acquittal in the trial may also not be able to wipe out the deep scars of sufferings of ignominy, it was further held therein. We have no hesitation to hold that the said observation of this Court is in fact, sounding of a caution, against non-discharge of the duty to see whether implication of a person who is not a close relative of the family of the husband is over implication or whether allegation against any such person is an exaggerated version, in matrimonial disputes of this nature. In this context, it is to be noted that the term 'relative' has not been defined in the statute and, therefore, it must be assigned a meaning as is commonly understood. Hence, normally, it can be taken to include, father, mother, husband or wife, son, daughter, brother, sister, nephew, niece, grandson or granddaughter of any individual or the spouse of any person. To put it shortly, it includes a person related by blood,

marriage or adoption. In paragraph 35 of Preeti Gupta's case (supra) it was furthermore held thus:--

> "...The courts have to be extremely careful and cautious in dealing with these complaints and must take pragmatic realties into consideration while dealing with matrimonial cases. The allegations of harassment by husband's close relatives who had been living in different cities and never visited or rarely visited the place where the complainant resided would have an entirely different complexion. The allegations of the complainant are required to be scrutinized with great care and circumspection."

10. In such circumstances, normally against a person who is not falling under any of the aforesaid categories when allegations are raised, in the light of the observations made in Preeti Gupta's case (supra), the Court concerned owes an irrecusable duty to see whether such implication is over implication and/or whether the allegations against such a person is an exaggerated version. We have already taken note of the fact that except the observation made in paragraph 7 there is no consideration at all of the contentions of accused No. 5 in the impugned order.

11. In the decision in Geeta Mehrotra v. State of U.P. : (2012) 10 SCC 741, this Court held that mere casual reference of the names of the family members in a matrimonial dispute without allegation of active involvement in the matter would not justify taking cognizance against them overlooking the tendency of over implication viz., to draw the entire members of the household in the domestic quarrel resulting in matrimonial dispute, especially when it happens soon after the wedding. In the decision in Kahkashan Kausar @ Sonam v. State of Bihar : (2022) 6 SCC 599, this Court quashed proceedings in so far as family members of the husband on the ground that the allegations against them are general and ominous in nature. In matters like the one at hand when relatives not residing in the same house where the alleged victim resides, the courts shall not stop consideration by merely looking into the question where the accused is a person falling within the ambit of the expression 'relative' for the purpose of Section 498-A, IPC, but should also consider whether it is a case of over implication or exaggerated version solely to implicate such person(s) to pressurise the main accused. It is also relevant to refer to the decision of this Court in State of Haryana v. Bhajan Lal: 1992 Supp (1) SCC 335, wherein after considering the statutory provisions and the earlier decisions, this Court referred to various categories of cases where the inherent powers under Section 482, Cr. P.C. could be exercised by High Court to prevent abuse of process of Court or otherwise to secure ends of justice. One among such categories is where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent man could ever reach a just conclusion that there is sufficient ground for proceeding against an accused."

C. - Dara Lakshmi Narayana and others v. State of Telangana and another : 2024 SCC OnLine SC 3682 "11. In State of Haryana v. Bhajan Lal, 1992 Supp (1) SCC 335 ("Bhajan Lal"), this Court formulated the parameters under which the powers under Section 482 of the CrPC could be exercised. While it is not necessary to revisit all the parameters, a few that are relevant to the present case may be set out as under:

> "102. In the backdrop of the interpretation of the various relevant provisions of the Code under Chapter XIV and of the principles of law enunciated by this Court in a series of decisions relating to the exercise of the extraordinary power under Article 226 or the inherent powers under Section 482 of the Code which we have extracted and reproduced above, we give the following categories of cases by way of illustration wherein such power could be exercised either to prevent abuse of the process of any court or otherwise to secure the ends of justice, though it may not be possible to lay down any precise, clearly defined and sufficiently channelised and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases wherein such power should be exercised.
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> (1) Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.

x x x (7) Where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge."

12. In the instant case, the allegations in the FIR are under Section 498A of the IPC and Sections 3 and 4 of the Dowry Act.

13. Section 498A of the IPC deals with offences committed by the husband or relatives of the husband subjecting cruelty towards the wife. The said provision reads as under:

> "498A. Husband or relative of husband of a woman subjecting her to cruelty.-- Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.
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> Explanation.-- For the purpose of this section, "cruelty" means-
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> (a) any wilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or
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> (b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand."

14. Further, Sections 3 and 4 of the Dowry Act talk about the penalty for giving or taking or demanding a dowry.

"3. Penalty for giving or taking dowry.--

(1) If any person, after the commencement of this Act, gives or takes or abets the giving or taking of dowry, he shall be punishable with imprisonment for a term which shall not be less than five years, and with fine which shall not be less than fifteen thousand rupees or the amount of the value of such dowry, whichever is more.

Provided that the Court may, for adequate and special reasons to be recorded in the judgment, impose a sentence of imprisonment for a term of less than five years.

(2) Nothing in sub-section (1) shall apply to, or in relation to,--

(a) presents which are given at the time of a marriage to the bride without any demand having been made in that behalf:

Provided that such presents are entered in a list maintained in accordance with the rules made under this Act;

(b) presents which are given at the time of a marriage to the bridegroom without any demand having been made in that behalf:

Provided that such presents are entered in a list maintained in accordance with the rules made under this Act:

Provided further that where such presents are made by or on behalf of the bride or any person related to the bride, such presents are of a customary nature and the value thereof is not excessive having regard to the financial status of the person by whom, or on whose behalf, such presents are given.

4. Penalty for demanding dowry.-- If any person demands, directly or indirectly, from the parents or other relatives or guardian of a bride or bridegroom, as the case may be, any dowry, he shall be punishable with imprisonment for a term which shall not be less than six months, but which may extend to two years and with fine which may extend to ten thousand rupees:

Provided that the Court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than six months."

15. An offence is punishable under Section 498A of the IPC when a husband or his relative subjects a woman to cruelty, which may result in imprisonment for a term extending up to three years and a fine. The Explanation under Section 498A of the IPC defines "cruelty" for the purpose of Section 498A of the IPC to mean any of the acts mentioned in clauses (a) or (b). The first limb of clause (a) of the Explanation of Section 498A of the IPC, states that "cruelty" means any wilful conduct that is of such a nature as is likely to drive the woman to commit suicide. The second limb of clause (a) of

the Explanation of Section 498A of the IPC, states that cruelty means any wilful conduct that is of such a nature as to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman. Further, clause (b) of the Explanation of Section 498A of the IPC states that cruelty would also include harassment of the woman where such harassment is to coerce her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.

16. Further, Section 3 of the Dowry Act deals with penalty for giving or taking dowry. It states that any person who engages in giving, taking, or abetting the exchange of dowry, shall face a punishment of imprisonment for a minimum of five years and a fine of not less than fifteen thousand rupees or the value of the dowry, whichever is greater. Section 4 of the Dowry Act talks of penalty for demanding dowry. It states that any person demanding dowry directly or indirectly, from the parents or other relatives or guardians of a bride or bridegroom shall be punishable with imprisonment for a term which shall not be less than six months, but which may extend to two years and with fine which may extend to ten thousand rupees.

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25. A mere reference to the names of family members in a criminal case arising out of a matrimonial dispute, without specific allegations indicating their active involvement should be nipped in the bud. It is a well-recognised fact, borne out of judicial experience, that there is often a tendency to implicate all the members of the husband's family when domestic disputes arise out of a matrimonial discord. Such generalised and sweeping accusations unsupported by concrete evidence or particularised allegations cannot form the basis for criminal prosecution. Courts must exercise caution in such cases to prevent misuse of legal provisions and the legal process and avoid unnecessary harassment of innocent family members. In the present case, appellant Nos. 2 to 6, who are the members of the family of appellant No. 1 have been living in different cities and have not resided in the matrimonial house of appellant No. 1 and respondent No. 2 herein. Hence, they cannot be dragged into criminal prosecution and the same would be an abuse of the process of the law in the absence of specific allegations made against each of them.

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28. The inclusion of Section 498A of the IPC by way of an amendment was intended to curb cruelty inflicted on a woman by her husband and his family, ensuring swift intervention by the State. However, in recent years, as there have been a notable rise in matrimonial disputes across the country, accompanied by growing discord and tension within the institution of marriage, consequently, there has been a growing tendency to misuse provisions like Section 498A of the IPC as a tool for unleashing personal vendetta against the husband and his family by a wife. Making vague and generalised allegations during matrimonial conflicts, if not scrutinized, will lead to the misuse of legal processes and an encouragement for use of arm twisting tactics by a wife and/or her family. Sometimes, recourse is taken to invoke Section 498A of the IPC against the husband and his family in order to seek compliance with the unreasonable demands of a wife. Consequently, this Court has, time and again, cautioned against prosecuting the husband and his family in the absence

of a clear prima facie case against them.

29. We are not, for a moment, stating that any woman who has suffered cruelty in terms of what has been contemplated under Section 498A of the IPC should remain silent and forbear herself from making a complaint or initiating any criminal proceeding. That is not the intention of our aforesaid observations but we should not encourage a case like as in the present one, where as a counterblast to the petition for dissolution of marriage sought by the first appellant-husband of the second respondent herein, a complaint under Section 498A of the IPC is lodged by the latter. In fact, the insertion of the said provision is meant mainly for the protection of a woman who is subjected to cruelty in the matrimonial home primarily due to an unlawful demand for any property or valuable security in the form of dowry. However, sometimes it is misused as in the present case.

30. In the above context, this Court in G.V. Rao v. L.H.V. Prasad, (2000) 3 SCC 693 observed as follows:

> "12. There has been an outburst of matrimonial disputes in recent times. Marriage is a sacred ceremony, the main purpose of which is to enable the young couple to settle down in life and live peacefully. But little matrimonial skirmishes suddenly erupt which often assume serious proportions resulting in commission of heinous crimes in which elders of the family are also involved with the result that those who could have counselled and brought about rapprochement are rendered helpless on their being arrayed as accused in the criminal case. There are many other reasons which need not be mentioned here for not encouraging matrimonial litigation so that the parties may ponder over their defaults and terminate their disputes amicably by mutual agreement instead of fighting it out in a court of law where it takes years and years to conclude and in that process the parties lose their "young" days in chasing their "cases" in different courts."

31. Further, this Court in Preeti Gupta v. State of Jharkhand, (2010) 7 SCC 667 held that the courts have to be extremely careful and cautious in dealing with these complaints and must take pragmatic realties into consideration while dealing with matrimonial cases. The allegations of harassment by the husband's close relatives who had been living in different cities and never visited or rarely visited the place where the complainant resided would have an entirely different complexion. The allegations of the complainant are required to be scrutinized with great care and circumspection."

16. The Apex Court in the case of Geddam Jhansi vs. The State of Telangana : Special Leave Petition (Criminal) No. 428 of 2024 decided on 07.02.2025 : 2025 INSC 160 has held that criminal charges of cruelty, dowry demand and domestic violence without specific allegations and credible materials may have disastrous consequences for families. It was further held that when family relationships are sought to be brought within the ambit of criminal proceedings rupturing the family bond, courts should be circumspect and judicious and should allow invocation of criminal process only when there are specific allegations with supporting materials which clearly constitute criminal offences. It has been held as under:

"31. Invoking criminal process is a serious matter with penal consequences involving coercive measures, which can be permitted only when specific act(s) which constitute offences punishable under the penal code or any other penal statute are alleged or attributed to the accused and a prima facie case is made out. It applies with equal force when criminal laws are invoked in domestic disputes. Criminalising domestic disputes without specific allegations and credible materials to support the same may have disastrous consequences for the institution of family, which is built on the premise of love, affection, cordiality and mutual trust. Institution of family constitutes the core of human society. Domestic relationships, such as those between family members, are guided by deeply ingrained social values and cultural expectations. These relationships are often viewed as sacred, demanding a higher level of respect, commitment, and emotional investment compared to other social or professional associations. For the aforesaid reason, preservation of family relationship has always been emphasised upon. Thus, when family relationships are sought to be brought within the ambit of criminal proceedings rupturing the family bond, courts should be circumspect and judicious, and should allow invocation of criminal process only when there are specific allegations with supporting materials which clearly constitute criminal offences.

32. We have to keep in mind that in the context of matrimonial disputes, emotions run high, and as such in the complaints filed alleging harassment or domestic violence, there may be a tendency to implicate other members of the family who do not come to the rescue of the complainant or remain mute spectators to any alleged incident of harassment, which in our view cannot by itself constitute a criminal act without there being specific acts attributed to them. Further, when tempers run high and relationships turn bitter, there is also a propensity to exaggerate the allegations, which does not necessarily mean that such domestic disputes should be given the colour of criminality.

33. It goes without saying that genuine cases of cruelty and violence in domestic sphere, which do happen, ought to be handled with utmost sensitivity. Domestic violence typically happens within the four walls of the house and not in the public gaze. Therefore, such violence is not noticed by public at large, except perhaps by the immediate neighbours. Thus, providing visible evidence by the victim of domestic violence may not be easily forthcoming and producing direct evidence may be hard and arduous, which does not necessarily mean that domestic violence does not occur. In fact, to deal with this pernicious phenomenon, stringent statutes like Protection from Domestic Violence Act, 2005, have been enacted with very expansive meaning and scope of what amounts to domestic violence. Since, violence perpetrated within the domestic sphere by close relatives is now criminalised entailing serious consequences on the perpetrators, the courts have to be careful while dealing with such cases by examining whether there are specific allegations with instances against the perpetrators and not generalised allegations. The purpose and mandate of the law to protect the victims of domestic violence is of paramount importance, and as such,

a balance has to be struck by ensuring that while perpetrators are brought to book, all the family members or relatives are not indiscriminately brought within the criminal net in a sweeping manner.

34. For a matrimonial relationship which is founded on the basis of cordiality and trust to turn sour to an extent to make a partner to hurl allegations of domestic violence and harassment against the other partner, would normally not happen at the spur of the moment and such acrimonious relationship would develop only in course of time. Accordingly, such a situation would be the culmination of a series of acts which turns, otherwise an amicable relationship, into a fractured one. Thus, in such cases involving allegations of domestic violence or harassment, there would normally be a series of offending acts, which would be required to be spelt out by the complainant against the perpetrators in specific terms to rope such perpetrators in the criminal proceedings sought to be initiated against them. Thus, mere general allegation of harassment without pointing out the specifics against such perpetrators would not suffice, as is the case in respect of the present appellants.

35. We are, thus, of the view that in criminal cases relating to domestic violence, the complaints and charges should be specific, as far as possible, as against each and every member of the family who are accused of such offences and sought to be prosecuted, as otherwise, it may amount to misuse of the stringent criminal process by indiscriminately dragging all the members of the family. There may be situations where some of the family members or relatives may turn a blind eye to the violence or harassment perpetrated to the victim, and may not extend any helping hand to the victim, which does not necessarily mean that they are also perpetrators of domestic violence, unless the circumstances clearly indicate their involvement and instigation. Hence, implicating all such relatives without making specific allegations and attributing offending acts to them and proceeding against them without prima facie evidence that they were complicit and had actively collaborated with the perpetrators of domestic violence, would amount to abuse of the process of law.

36. Our observations, however, should not be generalised to mean that relatives cannot be brought under the purview of the aforesaid penal provisions when they have actively participated in inflicting cruelty on the daughter-in-law/victim. What needs to be assessed is whether such allegations are genuine with specific criminal role assigned to such members of the family or whether it is merely a spill over and side-effect of a matrimonial discord and allegations made by an emotionally disturbed person. Each and every case of domestic violence will thus depend on the peculiar facts obtaining in each case."

17. Looking to the facts of the case, law on the dispute, nature of allegations and the relationship of the accused persons as per the F.I.R., the present cases are fit cases which deserve to be quashed.

18. In so far as the proceedings in respect of applicant no.1- Deva Nand Jaiswal in the leading petition being Application U/S 482 No. 32783 of 2019 is concerned, the same stands dismissed.

19. Interim order, if any, stands discharged.

20. The trial court to proceed with the matter expeditiously.

21. In so far as the proceedings in respect of applicant no.2- Smt. Sheela Devi in Application U/S 482 No. 32783 of 2019 and the proceedings in respect of applicants- Radhey Shyam Jaiswal, Ratnesh @ Jhinak, Abhinesh Jaiswal and Priyanka Jaiswal in Criminal Misc. Application U/S 482 No. 37304 of 2019 are quashed and their applications are allowed.

Order Date :- 28.5.2025 AS Rathore (Samit Gopal,J.)